

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----
KENNETH MATTHEWS,

Plaintiff,

-against-

CITY OF NEW YORK, JAMES P. O'NEILL, JR. as
Commissioner, DETECTIVE JAIPAU RAMDAT,
Shield #5369, and JOHN DOES 1-10, PERSONS
EMPLOYED BY THE CITY OF NEW YORK,Defendants.

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SUMMONS

:

Index No.: _____

:

Date Filed: _____

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Plaintiff designates

:

Queens County
as the place of trial

:

The basis of venue is based on

:

CPLR § 504(3)

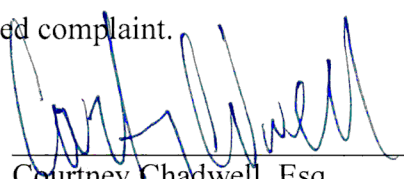
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
March 17, 2020


Courtney Chadwell, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
KENNETH MATTHEWS
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7389-LK

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2019PI004100, 100 Church Street, New York, NY 10007

JAMES P. O'NEILL, JR. c/o NEW YORK CITY POLICE DEPARTMENT, One Police Plaza,
New York, NY 10038

DETECTIVE JAIPaul RAMDAT, Shield #5369, 107th Precinct, 71-01 Parsons Blvd.,
Flushing, New York 11365

DETECTIVE JAIPaul RAMDAT, Shield #5369, 101st Precinct, 16-12 Mott Avenue, Far
Rockaway, New York 11691

SUPREME COURT OF THE STATE OF NEW YORK
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KENNETH MATTHEWS,

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-against-

CITY OF NEW YORK, JAMES P. O'NEILL, JR. as
Commissioner, DETECTIVE JAIPaul RAMDAT,
Shield #5369, and JOHN DOES 1-10, PERSONS
EMPLOYED BY THE CITY OF NEW YORK,Defendants.

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VERIFIED COMPLAINT

Index No.:

X

KENNETH MATTHEWS (hereinafter "Plaintiff"), by his attorneys, LEBEDIN KOFMAN LLP, complaining against Defendants CITY OF NEW YORK, JAMES P. O'NEILL, JR. as Commissioner, DETECTIVE JAIPaul RAMDAT, Shield #5369, and JOHN DOES 1-10, PERSONS EMPLOYED BY THE CITY OF NEW YORK, (hereinafter collectively "Defendants"), upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violation of his rights under the Fourth and Fourteenth Amendments of the United States Constitution.

PARTIES

2. At all relevant times, Plaintiff was and is a resident of Queens County, City and State of New York.

3. At all relevant times, Defendant CITY OF NEW YORK (hereinafter "City") was and is a municipal corporation incorporated and existing under the laws of the State of New York.

4. At all relevant times, the New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant City.

5. At all relevant times, Defendant City owned, operated, controlled and managed the NYPD.

6. At all relevant times, Defendant JAMES P. O’NEILL, JR. (hereinafter “O’Neill”) was the duly appointed and acting Commissioner of the New York City Police Department. As such, he was the highest supervisory official of the NYPD and was responsible during the relevant time period for the training and supervision of police personnel. He was also responsible for enforcing and promulgating the regulations and policies of the NYPD, and ensuring that all NYPD employees obey and implement such regulations and policies. At all relevant times, Defendant O’Neill was acting in his capacity as an agent and employee of Defendant City and he is sued in his official capacity

7. At all relevant times, Defendant DETECTIVE JAIPUAL RAMDAT, Shield #5369, (hereinafter “Ramdat”) was an officer, agent, and/or employee of Defendant City.

8. At all relevant times, the names of Defendants JOHN DOES 1-10 (hereinafter “Officers”) are fictitious and are intended to be individuals engaged in law enforcement who were involved in the arrest and battery of Plaintiff and violated Plaintiff’s rights, whose names are presently unknown to Plaintiff.

9. At all relevant times, Defendant Officers were officers, agents and/or employees of Defendant City.

10. At all relevant times, Defendants Ramdat and Officers were each individually hired, trained, supervised and retained by Defendant City, including its agencies, and all supervisory officers, agents, employees, and/or contractors of Defendant City.

11. At all relevant times, Defendants Ramdat and Officers were involved in violating Plaintiff's rights and in so doing acted or failed to act, as alleged herein, pursuant to the regulations, policies, and procedures promulgated by Defendant O'Neill and/or agents of the NYPD, whose acts may fairly be said to represent official policy or custom of the NYPD and Defendant City of New York.

12. Defendant Officers are sued herein in both their individual and official capacities.

FACTS

Timeliness and Notice of Claim

13. Plaintiff filed a Notice of Claim (see Exhibit "A" annexed hereto) with the City in accordance with General Municipal Law Section 50-e and 50-I on or about February 7, 2019. This Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

14. At least thirty (30) days has passed since service of the Notice of Claim and payment of the claim has been either refused or neglected.

15. A General Municipal Law Section 50-h hearing was held on or about May 22, 2019.

16. This action is being commenced within one year and ninety days of the date on which all claims accrued.

17. Plaintiff has complied with all conditions precedent to maintain this action.

18. All state causes of action pleaded herein fall within one or more of the exceptions set forth in New York Civil Practice Law & Rules Section 1602 with respect to joint and several liability.

The Incident of November 10, 2018

19. On or about November 10, 2018, Plaintiff was in his apartment at 3808 Beach

Channel, in the County of Queens, City and State of New York, at approximately 11:00 PM, when without warning Defendants Ramdat and Officers broke down his door and raided the apartment.

20. Upon information and belief, the warrant was based on information which Defendants Ramdat and Officers knew or should have known was inaccurate and unreliable.

21. Upon information and belief, the warrant for the raid was further deficient in that it contained the correct address but the wrong apartment number, causing Plaintiff's apartment to be mistakenly raided on the day in question.

22. During the arrest, Plaintiff did not resist, complied with all directions, and at no point posed a danger to Defendants Ramdat and Officers.

23. Defendants Ramdat and Officers nonetheless used unjustified excessive force while arresting Plaintiff, slamming him facedown on the ground and striking him on his head and face.

24. Defendants Ramdat and Officers then proceeded to place five pairs of handcuffs on Plaintiff's wrists, all at the same time, that were unbearably tight.

25. Plaintiff repeatedly complained that the handcuffs were too tight and were causing him to experience extraordinary pain and numbness in his hands and wrists, and he begged Defendants Ramdat and Officers to adjust the handcuffs.

26. Defendants Ramdat and Officers refused to do so, removing the handcuffs only after Plaintiff arrived at the police precinct hours later.

27. Plaintiff was issued a desk appearance ticket and released.

28. Defendants commenced a criminal prosecution against Plaintiff in Queens County under Docket No. CR-040911-18QN.

29. Plaintiff ultimately decided to accept an adjournment in contemplation of dismissal on December 18, 2018.

30. Defendants Ramdat and Officers acted either intentionally or in a grossly negligent manner in making an application for a warrant using the wrong apartment number, not correcting their mistake, and in raiding the wrong apartment.

31. At the time of Plaintiff's arrest and detention, Defendants Ramdat and Officers knew or should have known that the evidence against Plaintiff was insufficient to provide probable cause to arrest and detain him.

32. At the time of Plaintiff's arrest, Defendants Ramdat and Officers knew or should have known that there was no reasonable basis for using excessive physical force on Plaintiff since he was not resisting arrest or threatening Defendants in any way.

33. Defendants deviated egregiously from standard police procedure in obtaining a warrant for the wrong apartment and failing to realize or correct their mistake at any time prior to, during, or after Plaintiff's wrongful arrest.

34. Defendants deviated egregiously from standard police procedure in relying upon clearly inaccurate and unreliable information when obtaining a warrant.

35. Defendants deviated egregiously from standard police procedure governing acceptable use of force.

36. As a direct consequence of these egregious deviations from police procedure, Plaintiff was arrested for a crime he did not commit and brutally assaulted by Defendants.

37. At all times relevant to this action, Defendants acted with reckless disregard for and deliberate indifference to the clearly established rights of Plaintiff.

38. The wrongful acts and omissions of Defendants Ramdat and Officers complained of herein were the direct result of the failure of Defendants City and O'Neill to properly hire, train, supervise, monitor, and discipline their officers, agents, employees and/or contractors.

39. The wrongful acts and omissions of Defendants Ramdat and Officers complained of herein were taken pursuant to policies, practices, and/or customs developed, implemented, enforced, encouraged, and tolerated by Defendants O'Neill and City.

Plaintiff's Damages

40. Due to the unreasonable physical force used by Defendants Ramdat and Officers during Plaintiff's arrest, Plaintiff nearly died.

41. Plaintiff returned home to his apartment after he was released from custody and discovered that many of his belongings including his television, stereo system and speakers, bed, sneakers, and telephone had been destroyed or damaged by Defendants Ramdat and Officers.

42. Shortly after returning home, Plaintiff lost consciousness due to the severity of his injuries.

43. After regaining consciousness, Plaintiff sought emergency medical treatment.

44. Plaintiff was diagnosed with traumatic rhabdomyolysis, a condition where skeletal muscle tissue breaks down rapidly as a result of physical trauma and the toxic contents of dead muscle fibers are released into the bloodstream.

45. Doctors advised Plaintiff that had he postponed seeking medical treatment for one more hour, he most likely would have died from renal failure caused by the rhabdomyolysis.

46. Due to the severity of his injuries, Plaintiff was confined to the hospital for four days.

47. In addition, Plaintiff sustained permanent stomach injuries that required specialist medical treatment from being violently slammed against the ground during his arrest.

48. Plaintiff also sustained painful bruises and scratches to his wrists, face, ankles, chest, and knee because of the excessive force used by Defendants.

49. Due to Defendants' objectively unreasonable decision to place five pairs of tight handcuffs on him at the same time, Plaintiff sustained permanent nerve damage that resulted in chronic numbness, tingling, swelling, and pain in his hands and wrists.

50. All of these severe injuries have prevented Plaintiff from working or performing his normal activities of daily living, and have required ongoing medical treatment.

51. Plaintiff incurred approximately \$50,000 in medical expenses as a result of the injuries inflicted upon him by Defendants.

52. Plaintiff was forced to resign from his job as a school aide due to the arrest.

53. In addition to economic losses, deprivation of liberty, and serious physical injury, Plaintiff also suffered extraordinary emotional distress and psychological damages as a result of the aforesaid acts or omissions of Defendants.

54. The emotional distress caused by Defendants' actions was so severe that Plaintiff was forced to seek psychiatric care and begin taking medication for depression and anxiety, which he had never had to do before his arrest.

55. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST DEFENDANTS RAMDAT AND OFFICERS
FOR FALSE ARREST AND IMPRISONMENT
PURSUANT TO 42 U.S.C. §1983

56. The allegations set forth in paragraphs "1" through "55" inclusive are incorporated herein as if fully set forth.

57. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

58. Plaintiff has a clearly established constitutional right to not be deprived of his liberty or detained without due process of law.

59. Defendants Ramdat and Officers seized, arrested and detained Plaintiff unlawfully, without due process or probable cause.

60. Plaintiff did not consent to the seizure or arrest, and the seizure and arrest were not privileged or otherwise justified.

61. Defendants Ramdat and Officers knew or should have known that falsely arresting and detaining Plaintiff without probable cause would constitute a violation of his constitutional rights.

62. Defendants Ramdat and Officers knew or should have known that Plaintiff committed no crime at the time they arrested and detained him.

63. Due to such knowledge, Defendants Ramdat and Officers knew or should have known that they had an obligation to not arrest or detain Plaintiff given the lack of probable cause to believe that he committed a crime.

64. Defendants Ramdat and Officers nonetheless intentionally and/or in a grossly negligent manner arrested and detained Plaintiff without probable cause and despite knowing that Plaintiff committed no crime.

65. In doing so, Defendants Ramdat and Officers were deliberately indifferent to Plaintiff's clearly established constitutional rights.

66. Defendants' actions and/or omissions were objectively unreasonable given the circumstances.

67. As a direct result of these failures, Plaintiff falsely arrested and unlawfully detained.

68. By reason of their acts and omissions, all Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from false arrest and imprisonment in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

69. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained life threatening physical injuries including traumatic rhabdomyolysis and nerve and gastrointestinal damage, as well as loss of enjoyment of life, severe emotional distress, anxiety, trauma, depression, insomnia, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

70. The conduct of Defendants set forth above and complained of herein was so evil, malicious and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others, and renders the Defendants Ramdat Officers liable to Plaintiff for punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST DEFENDANTS RAMDAT AND OFFICERS
FOR EXCESSIVE FORCE
PURSUANT TO 42 U.S.C. §1983

71. The allegations set forth in paragraphs "1" through "70" inclusive are incorporated herein as if fully set forth.

72. Plaintiff has a clearly established constitutional right to be free from physically abusive government conduct.

73. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

74. Defendants Ramdat and Officers knew or should have known that violently slamming Plaintiff to the ground and hitting him in the face, in spite of the fact that he was not resisting arrest and did not pose a threat to Defendants, would constitute a violation of his constitutional rights.

75. Defendants Ramdat and Officers knew or should have known that placing Plaintiff in multiple pairs of handcuffs that were excessively and unbearably tight to the point of causing injury, in spite of the fact that he was not resisting arrest and did not pose a threat to Defendants, would constitute a violation of his constitutional rights.

76. Defendants Ramdat and Officers knew or should have known that intentionally ignoring Plaintiff's repeated complaints of severe pain and physical distress would constitute a violation of his constitutional rights.

77. Accordingly, Defendants Ramdat and Officers knew or should have known that they had an obligation to adjust Plaintiff's handcuffs after he began expressing pain and physical distress, and to cease restraining him in a manner that was physically harmful and/or abusive.

78. Defendants Ramdat and Officers also knew or should have known that they had an obligation to only use reasonable force while taking Plaintiff into custody.

79. Defendants Ramdat and Officers nonetheless intentionally and/or in a grossly negligent manner used excessive force in arresting Plaintiff, used five sets of handcuffs at once, fastened Plaintiff's handcuffs so that they were unbearably tight, and then refused to adjust the handcuffs despite Plaintiff's complaints and obvious physical distress.

80. In doing so, Defendants Ramdat and Officers were deliberately indifferent to Plaintiff's clearly established constitutional rights.

81. Defendants' actions and/or omissions, including their use of force, were objectively unreasonable given the circumstances.

82. As a direct result of these failures, Plaintiff was subjected to excessive force and assault and battery.

83. By reason of their acts and omissions, all Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from unreasonable search and seizure and physically abusive government conduct in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

84. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained life threatening physical injuries including traumatic rhabdomyolysis and nerve and gastrointestinal damage, as well as loss of enjoyment of life, severe emotional distress, anxiety, trauma, depression, insomnia, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

85. The conduct of Defendants set forth above and complained of herein was so evil, malicious and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others, and renders the Defendants Ramdat Officers liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST
DEFENDANTS RAMDAT AND OFFICERS
FOR FAILURE TO INTERVENE PURSUANT TO
42 U.S.C. §1983

86. The allegations set forth in paragraphs "1" through "85" inclusive are incorporated herein as if fully set forth.

87. Plaintiff has a clearly established constitutional right to be free from unreasonable search and seizure.

88. Plaintiff has a clearly established constitutional right to be free from physically abusive government conduct.

89. During Plaintiff's arrest and detention, he was intentionally or in a grossly negligent manner placed in five sets of handcuffs at once which were so unreasonably and excessively tight for a prolonged period of time that he sustained life threatening injuries and permanent nerve damage as a result.

90. During Plaintiff's arrest and detention, he was violently slammed to the floor, hit, and otherwise assaulted by Defendants Ramdat or Officers.

91. It was objectively unreasonable and a violation of his clearly established rights for Plaintiff to be restrained in such an injurious manner given that he was not resisting and did not pose a threat to Defendants Ramdat or Officers.

92. It was objectively unreasonable and a violation of his clearly established rights for Plaintiff to be subjected to such an excessive use of force given that he was not resisting and did not pose a threat to Defendants Ramdat or Officers.

93. Each of the Defendant Officers who did not personally handcuff Plaintiff observed or was otherwise made aware that Plaintiff's handcuffs had been fastened in a manner that was inflicting severe injury without justification.

94. Defendants Ramdat and Officers, at various times during the arrest, observed each other using excessive force towards Plaintiff.

95. Defendant Ramdat and each of these Defendant Officers had a realistic opportunity to prevent injury and harm to Plaintiff during his arrest.

96. Defendant Ramdat and each of these Defendant Officers knew or should have known that they had an affirmative duty to intervene to protect Plaintiff's constitutional rights from infringement by other law enforcement officials in their presence.

97. Defendants Ramdat and Officers nonetheless intentionally and/or in a grossly negligent manner failed to intervene to protect Plaintiff's rights and prevent injury once they became aware that Plaintiff was in severe pain and physical distress from the tightness of his handcuffs, and after witnessing and/or participating in the physical assault of Plaintiff.

98. In doing so, Defendants Ramdat and Officers were deliberately indifferent to Plaintiff's aforementioned clearly established constitutional rights.

99. Defendants' actions and/or omissions, including their use of force and failure to intervene in others' use of force, were objectively unreasonable given the circumstances.

100. As a direct result of these failures, Plaintiff was subjected to excessive force and assault and battery.

101. By reason of their acts and omissions, all Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from unreasonable search and seizure and physically abusive government conduct in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

102. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained life threatening physical injuries including traumatic rhabdomyolysis and nerve and gastrointestinal damage, as well as loss of enjoyment of life, severe emotional distress, anxiety, trauma, depression, insomnia, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

103. The conduct of Defendants set forth above and complained of herein was so evil, malicious and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others, and renders the Defendants Ramdat and Officers liable to Plaintiff for punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST
DEFENDANTS O'NEILL AND CITY OF NEW YORK
PURSUANT TO 42 U.S.C. §1983

104. The allegations set forth in paragraphs "1" through "103" inclusive are incorporated herein as if fully set forth

105. Defendants O'Neill and City knew or should have known that there was a serious, widespread and ongoing problem within the NYPD of arrests that resulted in serious physical injury to non-violent and non-resisting arrestees, and that police officers (including Defendants Ramdat and Officers) routinely inflicted unnecessary physical injuries on arrestees and looked the other way and took no action when other police officers used excessive force against arrestees in their presence.

106. Defendants O'Neill and City similarly knew or should have known that there was a serious, widespread, and ongoing problem with armed law enforcement raids being carried out on the homes of innocent civilians because NYPD officers (including Defendants Ramdat and Officers) frequently relied on faulty information and made careless material mistakes on warrant applications, and then failed to catch or correct those mistakes.

107. Upon information and belief, Defendants O'Neill and City had prior notice of the propensity of Defendants Ramdat and Officers to engage in the illegal and wrongful acts detailed herein but took no steps to correct the abuses, adequately train them, or otherwise discourage their unlawful use of authority.

108. Upon information and belief, Defendants Ramdat and Officers have been the subject of prior civilian and departmental complaints of misconduct very similar in nature to the wrongful conduct complained of herein that placed or should have placed Defendants O'Neill and City on notice of these Defendants' propensities to violate the constitutional rights of citizens.

109. However, Defendants O'Neill and City maintained a policy of deliberate indifference to the rights of citizens to be free from unreasonable search and seizure; failed to establish and maintain a meaningful system to catch mistakes made during the process of applying for and obtaining search warrant; failed to promulgate and implement policies and procedures designed to ensure that officers verify address and other identifying information before obtaining search warrants; failed to promulgate and implement policies and procedures designed to ensure that officers verify that addresses and other identifying information are correct before executing search warrants; failed to promulgate and implement policies and procedures regarding proper use of restraints such as handcuffs; failed to promulgate and implement policies or procedures requiring police officers to take affirmative action to prevent or stop rights violations by other officers; failed to appropriately discipline police officers who fail to intervene when other officers cause unjustified injury to arrestees or otherwise violate constitutional rights; failed to promulgate and implement policies and procedures to ensure that employees refrain from using excessive force during arrests; failed to appropriately discipline police officers who use excessive force and cause unjustified injury to arrestees; failed to establish and maintain a meaningful system for responding to complaints of pain or physical distress by individuals in police custody; failed to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; authorized, tolerated and ratified the misconduct of police officers; and failed to intervene when

employees, officers, agents, and/or contractors violated well-established statutory and constitutional rights.

110. Defendant City knew or should have known that those failures would cause the violation of the constitutional rights of citizens who come in contact with the NYPD.

111. As a direct result of these failures, Plaintiff was subjected to excessive physical force, assault and battery, and unreasonable search and seizure.

112. By reason of their acts and omissions, Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from excessive force, unreasonable search and seizure, and physically abusive government conduct in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

113. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained life threatening physical injuries including traumatic rhabdomyolysis and nerve and gastrointestinal damage, as well as loss of enjoyment of life, severe emotional distress, anxiety, trauma, depression, insomnia, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

114. The conduct of Defendants set forth above and complained of herein was so evil, malicious and egregious that it shocks the contemporary conscience and evinces a conscious disregard for the rights of others, and renders the Defendants Ramdat and Officers liable to Plaintiff for punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST DEFENDANTS O'NEILL AND CITY OF NEW YORK FOR
FAILURE TO TRAIN PURSUANT TO
42 U.S.C. §1983

115. The allegations set forth in paragraphs "1" through "114" inclusive are incorporated herein as if fully set forth.

116. Defendants O'Neill and City had an obligation to provide training to employees regarding proper use of restraints such as handcuffs; how to properly evaluate the reliability and accuracy of information and/or tips provided by informants regarding potential drug activity; the affirmative duty to intervene to stop all violations of constitutional rights by other law enforcement officials in an officer's presence; the constitutional right to be free from unreasonable search and seizure; the constitutional right to be free from physically abusive government conduct; the proper protocol for handling complaints or observations of pain or physical distress by individuals in police custody; and the requirement that all physical force towards arrestees must be proportional and justified.

117. Defendants O'Neill and City were deliberately indifferent to their obligation to provide training to their employees on the subjects listed above.

118. Defendants O'Neill and City knew or should have known that the failure to provide said training would endanger the health, safety, and well-being of citizens and lead to constitutional violations.

119. In failing to provide adequate training, Defendants O'Neill and City were deliberately indifferent to the rights of citizens to be free from unreasonable search and seizure and physically abusive government conduct.

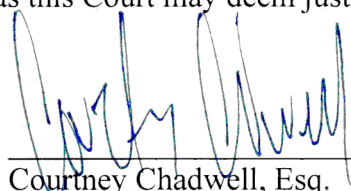
120. As a direct result of these failures, Plaintiff was subjected to unreasonable search and seizure, assault and battery, and physically abusive government conduct, in violation of his rights.

121. By reason of their acts and omissions, Defendants, acting under color of state law, with gross disregard for Plaintiff's rights, deprived Plaintiff of his rights to be free from excessive force and physically abusive government conduct in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

122. As a direct and proximate result of the Defendants' acts and/or omissions, Plaintiff sustained life threatening physical injuries including traumatic rhabdomyolysis and nerve and gastrointestinal damage, as well as loss of enjoyment of life, severe emotional distress, anxiety, trauma, depression, insomnia, professional and economic losses, and other financial costs and expenses in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action. Said injuries are irreversible and permanent.

WHEREFORE, Plaintiff demands judgment against Defendants Defendants CITY OF NEW YORK, JAMES P. O'NEILL, JR. as Commissioner, DETECTIVE JAIPaul RAMDAT, Shield #5369, and JOHN DOES 1-10, PERSONS EMPLOYED BY THE CITY OF NEW YORK, individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
March 17, 2020



Courtney Chadwell, Esq.
LEBEDIN KOFMAN LLP
Attorneys for Plaintiff
KENNETH MATTHEWS
26 Broadway, 27th Floor
New York, New York 10004
(212) 500-3273
File No.: FA-7389-LK

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

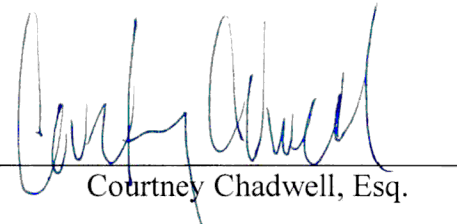
I am an associate of Lebedin Kofman LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman LLP maintains its offices.

Dated: New York, New York
March 17, 2020


Courtney Chadwell, Esq.